63-602 Non-Financial Eligibility (Q&A)

Table of Contents

Subject	Question/Answer
Drug/Alcohol Rehabilitation Residents	Residents of Drug/Alcohol Treatment Centers without FNS Certification
Drug Felon	• Felony Conviction for Obtaining a Controlled Substance • Felony Warrant from another State
Household Composition	• Divorce • Foster Care Children Spending Time with their Parent • Grandmother has Guardianship of two Grandchildren; Children's Mother Moves into the Household
Probation/Parole Violation	Information of Probation Violation Provided by Law Enforcement
Student Eligibility	Adult Student Exerting Parental Control

Residents of Drug/Alcohol Treatment Centers without FNS Certification

SCENARIO:

A local private non-profit drug and alcohol resident treatment center has been approved and signed off by the city to operate the facility. They have also submitted their paperwork for State certification. They are not currently in receipt of the appropriate State Department of Alcohol and Drug Program (ADP) documents. They are waiting for the home visit to be completed and do not know when that will take place.

The center has three residents 24/7 and live-in staff who eat all their meals with the residents. One staff person is paid and the others are unpaid interns. The center purchases the food with funds contributed from various sources.

QUESTION 1:
Can this center receive CalFresh as one group while they are pending the ADP documents which would allow them to have separate CalFresh cases?

ANSWER 1:
No, the facility is not yet authorized to apply for CalFresh benefits on behalf of each resident. Residents of this particular facility would not be eligible for CalFresh since the meals are provided by the facility and the facility is not certified yet.

Residents of drug and alcohol treatment programs may be eligible for benefits when the facility provides meals; however, the facility must be certified by Food and Nutrition Service (FNS) or qualify for funding

under Part B of Title 19 of the Public Health Services Act to act as a retailer for CalFresh benefits and that certification for CalFresh benefits must be accomplished through an authorized representative of the facility.

QUESTION 2
Would the live-in staff need to be included in the CalFresh household?

ANSWER 2:
No, there is no provision in regulations that would classify live-in staff as residents for CalFresh benefit purposes.

Section 63-123.8
ACIN I-84-09

Felony Conviction for Obtaining a Controlled Substance

A young man applying for CalFresh states he had a felony conviction for forgery. His record says "felony conviction for obtaining a controlled substance by fraud." The Department of Justice record does not state if the controlled substance was for personal use or for sale. Furthermore, the client states that he was writing prescriptions for his mother to obtain her pain medication.

QUESTION
Should this client be considered a drug felon for CalFresh? If so, could he get CalFresh or does he fall under the Welfare and Institutions (W&I) Code 18901.3 that disallows him from getting CalFresh?

ANSWER
The client was illegally obtaining pain medication for his mother. This action falls under W&I Code 18901.3(b) because the client was convicted of "furnishing, giving away, administering" a controlled substance by distributing or supplying the substance to his mother through forgery. Consequently, he is ineligible for CalFresh benefits. Section 63-164.2 specifies that persons convicted of a felony involving an "element" of possession for distribution of a controlled substance are ineligible for CalFresh.
ACIN I-91-06

Felony Warrant from another State

SCENARIO:

A client has an active felony warrant from the state of Minnesota. The client acknowledges the warrant. He states he is not a "fleeing felon" as he has been pulled over by local police and they will not take him into custody to send him back to Minnesota for the outstanding warrant. The county Special Investigation Unit confirmed the felony warrant is active and is not transferable per Minnesota.

QUESTION:

Since the warrant is not transferable, does it change the fact that he has an active felony warrant?

ANSWER:

No. The client is a "Fleeing Felon" and the regulations apply, thereby making him ineligible for CalFresh. Section 63-163.1.

ACIN I-05-08

Divorce

A CalFresh household consists of a 20 year-old mother with one eligible child. The mother and child share their household with the mother's former stepfather. The former stepfather has confirmed that he was married to the client's mother, but they have been divorced for at least five years. The SAWS 2 and all applicable paperwork claim that the mother and her child purchase and prepare separately from the former, now divorced, stepfather.

QUESTION

Does the divorce eliminate the requirement that this household be considered one household?

ANSWER

Yes, they can be considered separate households based on the following reasoning:

- Not eating, purchasing, and preparing together. According to Section 63-101.3, separate CalFresh household status may be approved to: "An individual or group living with others who customarily purchases food and prepares meals for home consumption separately from the others."
- Per Section 63-101.4D, parents living with their natural, adopted or stepchildren, or children living with their natural, adopted or stepparents will not be considered separate households unless a child is:
  - 22 years of age or older and purchases and prepares meals separately from his/her parents, or
  - Participating in the other's parent's CalFresh household.

Since the former stepparent is no longer married to the client's mother, he is not responsible for the support of the child.

ACIN I-58-06

Foster Care Children Spending Time with their Parent

SCENARIO:

The County has dependency of the foster care children; the foster care payment is being issued to the foster care home. The mother was granted court ordered visits. The children spend four days and three nights a week with the mother and the rest of the week in the foster care home. Starting on August 3, the mother will have the children

five days and four nights a week. Foster care money is not available to the children as the money is used for their needs when they are in the foster care home. The foster care family is not requesting CalFresh. The mother needs assistance in caring for the children.

QUESTION:

Can the mother apply for and receive CalFresh for her children if she has her children four days and three nights out of the week? If so, would the foster care payments follow the children and count as unearned income in the mother's case? What if the mother has the children for five days and four nights a week?

ANSWER:

No. The mother is not eligible to receive CalFresh benefits for the children because the children are considered foster children placed in a foster care home (Sections 63-101.7 and 63-101.9).

ACIN I-41-10

Grandmother has Guardianship of two Grand-children; Children's Mother Moves into the Household

SCENARIO

A grandmother has full care and control of two of her grandchildren. She provided a Letter of Guardianship, which has been filed with the courts.

The mother of the children moves back into her mother's home and applies for CalFresh.

QUESTION

Must the mother apply for herself and her two children?

ANSWER

The household composition is dependent upon state law regarding parental rights, unless the guardianship is a foster care arrangement.

Parental rights are not necessarily severed in a guardianship situation.

If the mother's parental rights have not been terminated, all four members would be considered one household. The children and the natural mother must be in the same CalFresh household if the children are under 22 years of age. All of this ties all four members together as one household and the mother would have to include the children in her application for CalFresh.

If the grandmother's guardianship included termination of the mother's parental rights, the mother would have to apply as a separate household if she is purchasing and preparing separately. Ultimately, it would be up to the worker to determine if parental rights had been severed by reviewing the court order.

If the guardianship is a foster care arrangement, the children are

considered boarders. Foster care regulation overrides living with the mother. In this situation, the foster children (the grandchildren) may participate in CalFresh as part of the grandmother's household, at her request. The adult daughter would still be a separate household, unless she is purchasing and preparing food with the grandmother.

Sections 63-101.4 and 63-101.7.

ACIN I-05-08 and Errata

Information of Probation Violation Provided by Law Enforcement

SCENARIO

A client who is on probation applies for CalFresh. The worker is informed by a law enforcement officer that the client has an active arrest warrant for violation of his/her probation.

QUESTION

Is evidence of an existing arrest warrant for violation of probation/ parole sufficient to discontinue or deny CalFresh without verification that the violations have already been investigated and officially established by the courts responsible for the supervision of probation?

ANSWER

Yes. If a law enforcement officer provides documentation indicating that a household member is fleeing to avoid prosecution or custody for a felony, or has violated a condition of probation or parole, the worker will discontinue or deny the CalFresh member. An active arrest warrant for "violation of probation or parole" is sufficient verification that the household member is in violation of his/her probation or parole. Sections 63-163.1-3.

ACIN I-05-08 and Errata

Adult Student Exerting Parental Control

QUESTION

A household consisting of a father attending college full-time, a mother who is unemployed, and two children under six for whom the mother provides the majority of care. Can the father be considered an eligible student based on exerting parental control of a household member under age six (Section 63-162.4B)? If so, can he also qualify for the work registration exemption based on half-time school attendance as explained in Section 63-158.3?

ANSWER

No. The father is not an eligible student based on assertion of parental authority. This criterion is only met if the student provides the majority of child care for children in the household under age 6. In this situation, the mother provides the majority of care. The father cannot claim the work registration exemption based on half-time school attendance unless he meets one the of the other student eligibility

criteria at Section 63-63-162.4.

ACIN I-73-04